

PROCLAMATION OF SALE

In The Matter of Facilities Agreement, Deed of Assignment and Power of Attorney all dated 04th April 2016.

Between
HONG LEONG BANK BERHAD (Company No.: 193401000023 [97141-X]) Bank / Assignee
And
WOO CHEE SIEN [NRIC NO.: 880407-08-5439] Assignor / Borrower

In exercising the rights and powers conferred upon the Assignee under the **Facilities Agreement, Deed of Assignment and Power of Attorney all dated 04th April 2016** entered into between the Assignee and the Assignor(s) in respect of the **Sale and Purchase Agreement** entered into between **SUNRAY DEVELOPMENT SDN BHD (COMPANY NO.: 752961-M)** ("The Developer/Vendor") and the Assignor dated the **24th January 2016**, it is hereby proclaimed that the Assignee with the assistance of the undermentioned Auctioneer :-

Will Sell The Property Described Below By PUBLIC AUCTION

ON MONDAY, 29TH JUNE 2026 AT 10.30 A.M

VENUE: AUCTION HALL OF VISION SKYBIDZ AUCTION CENTRE SDN BHD
UNIT NO. 20-04, LEVEL 20, MENARA LANDMARK, NO. 12, JALAN NGEEN HENG,
80888 IBRAHIM INTERNATIONAL BUSINESS DISTRICT, JOHOR DARUL TA'ZIM.

(REGISTRATION CLOSE AT 9.30 A.M)

PROSPECTIVE BIDDERS MAY ALSO SUBMIT THEIR BIDS FOR THE PROPERTY ONLINE AT THE
UNDERMENTIONED AUCTIONEER'S WEBSITE AT www.vsauction.com.my ("AUCTIONEER'S WEBSITE")
(Online bidders are further subject to the terms and conditions at the Auctioneer's Website)

NOTE : Prospective bidders are advised to : (i) seek independent legal advice on the Conditions Of Sale herein (ii) inspect the subject property (iii) check on the issuance of separate individual / strata title (iv) conduct an official title search at the relevant Land Office and/or other relevant authorities (v) make the necessary enquiries with the Developer and/or Proprietor and/or State Authorities and/or relevant bodies on the necessary confirmations / terms of consent to the sale herein prior to the auction sale (vi) conduct and rely on their own searches, enquiries, investigations and verification's on the accuracy and correctness of the particulars and information provided. Prospective bidders are also advised that no reliance may be placed on any statement(s) or representation(s) made in this Proclamation Of Sale or by the Auctioneer at the auction concerning the subject property and that any prospective bidder(s) who choose(s) to rely on such statement(s) or representation(s) do(es) so at his/her/their own risk. The successful bidder(s) ("the Purchaser(s)") shall immediately upon the sale undertake to apply for and obtain the necessary confirmations / consent to transfer or assign (if any) from the Developer and/or Proprietor and/or State Authorities and/or relevant bodies.

Particulars of Property:

Master Title No. & Lot No.	: HS(D) 403854 & PTD No. 67756 (subject to verification by intending bidders/purchasers)
Mukim / District / State	: Mukim of Tebrau, District of Johor Bahru, State of Johor (subject to verification by intending bidders/purchasers)
Developer's Parcel	: Lot No. A-08-10, Type No. B, Level No. 08, Block Tower A1, Havona (subject to verification by intending bidders/purchasers)
Tenure Land	: Freehold
Approximate Floor Area	: Approximately 88.54 Square Metres (953.00 Square Feet) (subject to verification by intending bidders/purchasers)
Developer / Registered Proprietor	: Sunray Development Sdn Bhd (Company No.: 752961-M)
Beneficial Owner	: Woo Chee Sien
Encumbrance	: Assigned to Hong Leong Bank Berhad

Location and Description:

The subject property is a service apartment unit bearing postal address **Unit No. #08-10, Menara A, Residensi Mutiara, Jalan Mutiara Emas Utama, Taman Mount Austin, 81100 Johor Bahru, Johor.** (subject to verification by intending bidders/purchasers)

Reserve Price:

The Property will be sold on an "as is where is" basis and subject to a reserve price of **RM 480,000.00 (Ringgit Malaysia: Four Hundred and Eighty Thousand Only)** and the Conditions of Sale and by way of an Assignment from the Assignee subject to the necessary confirmations / consent being obtained by the Purchaser from the Developer and/or Proprietor and/or State Authorities and/or relevant bodies (if any).

Deposit:

All intending bidders are required to deposit **10%** of the fixed reserve price ("the initial deposit") by way of **bank draft** or **cashier's order** crossed "A/C PAYEE ONLY" made payable to "**HONG LEONG BANK BERHAD / WOO CHEE SIEN**" prior to the auction sale (for online bidders, evidence of 10% deposit (via online bank transfer) is required to be uploaded and submitted together with registration at least one (1) working day before the auction date) and pay the difference between the initial deposit and the sum equivalent to **10%** of the successful bid price either in **cash** or **bank draft** or **cashier's order** crossed "A/C PAYEE ONLY" made payable to "**HONG LEONG BANK BERHAD / WOO CHEE SIEN**" immediately after the fall of the hammer with the undermentioned Auctioneer (for successful online bid, the difference between the initial deposit and the sum equivalent to 10% of the successful bid price shall be paid to the Auctioneer within three (3) working days of the auction sale in the manner as stated above). The balance of the purchase price is to be settled within **ninety (90) days** from the date of auction sale to **HONG LEONG BANK BERHAD**.

For further particulars, please contact **MESSRS MANJIT SINGH SACHDEV, MOHAMMAD RADZI & PARTNERS**, Solicitors for the Assignee herein whose address is at No. 79-1 & 79-2, 1st & 2nd Floor, SS 15/8A, Subang Jaya, 47500 Petaling Jaya, Selangor Darul Ehsan. [Reference No.: MS/DIR/AA/LACAB/(21SL-41695/2025/HLBB-HL/AIDA)], Telephone No.: 03-5631 0415 | Fax No.: 03-5631 0416 or the undermentioned Auctioneer. Intending bidders may also visit the Auctioneer's Website at www.vsauction.com.my, for more information.

VISION SKYBIDZ AUCTION CENTRE SDN BHD

Unit No. 20-04, Level 20, Menara Landmark,
No. 12, Jalan Ngee Heng,
80888 Ibrahim International Business District, Johor Darul Ta'zim.
Tel : 07 - 276 3383
Email : auction@visionskybidzauction.com.my
Website : www.vsauction.com.my

SUA CHONG YEW

MOHAMAD SHAFIQ BIN MOHAMAD HAIR
Licensed Auctioneer
Ref : SCY/HL/LA/1008/26(JB)

PERISYTIHARAN JUALAN

Dalam Perkara mengenai Perjanjian Kemudahan, Surat Ikatan Penyerahan Hak dan Surat Wakil Kuasa semua bertarikh 04th April 2016.

Di Antara
HONG LEONG BANK BERHAD (NO. SYARIKAT: 193401000023 [97141-X])

..... Bank / Pemegang Serahhak

Dan
WOO CHEE SIEN [NO. K/P: 880407-08-5439]

..... Penyerahhak / Peminjam

Dalam menjalankan hak dan kuasa yang diberi kepada Pemegang Serahhak di bawah Perjanjian Kemudahan, Surat Ikatan Penyerahan Hak dan Surat Wakil Kuasa semua bertarikh 04th April 2016 antara Pemegang Serahhak dan Pihak Penyerahhak berkenaan dengan Perjanjian Jual Beli antara SUNRAY DEVELOPMENT SDN BHD (NO. SYARIKAT: 752961-M) ("Pemaju/Penjual") dan Pihak Penyerahhak yang bertarikh 24th Januari 2016, adalah dengan ini diisytiharkan bahawa Pemegang Serahhak dengan dibantu oleh Pelelong yang tersebut di bawah :-

Akan Menjual Hartanah Yang Diterangkan Di Bawah Secara LELONGAN AWAM

PADA HARI ISNIN, 29th JUN 2026 JAM 10.30 PAGI

TEMPAT: DEWAN LELONGAN VISION SKYBIDZ AUCTION CENTRE SDN BHD
UNIT NO. 20-04, LEVEL 20, MENARA LANDMARK, NO. 12, JALAN NGEE HENG,
80888 IBRAHIM INTERNATIONAL BUSINESS DISTRICT, JOHOR DARUL TA'ZIM.

(PENDAFTARAN DITUTUP PADA 9.30 PAGI)

**BAKAL PEMBIDA BOLEH MEMBUAT BIDAAN DALAM TALIAN DI LAMAN WEB PELELONG
DI www.vsauction.com.my ("LAMAN WEB PELELONG")**

(Pembida dalam talian adalah juga tertakluk kepada terma dan syarat yang terkandung dalam Laman Web Pelelong)

NOTA : Bakal-bakal pembeli adalah dinasihatkan agar : (i) meminta nasihat bebas daripada pihak Guaman mengenai Syarat-syarat Jualan di sini (ii) memeriksa hartanah tersebut (iii) membuat pertanyaan sekiranya hakmilik individu dan hakmilik strata telah dikeluarkan (iv) membuat carian hakmilik secara rasmi di Pejabat Tanah dan/atau lain-lain Pihak Berkuasa yang relevan (v) membuat pertanyaan yang diperlukan dengan pihak Pemaju dan/atau Pemilik dan/atau Pihak Berkuasa Negeri, dan/atau badan-badan yang relevan mengenai pengesahan-pengesahan/ terma-terma kebenaran yang diperlukan untuk jualan sebelum jualan lelong (vi) membuat dan bergantung pada carian sendiri, pertanyaan, penyiasatan dan penentusahan mengenai ketepatan dan kebenaran butir-butir dan maklumat yang dikemukakan. Bakal-bakal pembeli adalah dinasihatkan bahawa pergantungan tidak boleh dibuat pada kenyataan-kenyataan atau representasi-representasi yang dibuat pada Perisytiharan Jualan ini atau oleh Pelelong pada masa lelongan berkenaan dengan hartanah yang diperihalkan dan mana-mana bakal pembeli yang memilih untuk bergantung pada kenyataan-kenyataan atau representasi-representasi tersebut berbuat demikian atas risiko sendiri. Penawar yang berjaya ("Pembeli") sebaik sahaja selepas jualan mengakujaji untuk memohon dan mendapatkan pengesahan/ kebenaran yang diperlukan untuk pindahmilik atau serahhak (jika ada) daripada Pemaju dan/atau Pemilik dan/atau Pihak Berkuasa Negeri dan/atau badan-badan yang relevan.

Butir-butir Hakmilik:

No Hakmilik Induk & No. Lot : HS(D) 403854 & No. PTD 67756 (*tertakluk kepada pengesahan pembida/pembeli*)
Mukim / Daerah / Negeri : Mukim Tebrau, Daerah Johor Bahru, Negeri Johor (*tertakluk kepada pengesahan pembida/pembeli*)
No. Petak Pemaju : No. Lot A-08-10, No. Jenis B, No. Lantai 08, Menara Block A1, Havona (*tertakluk kepada pengesahan pembida/pembeli*)
Pegangan : Selama-lamanya
Anggaran Keluasan Lantai : Lebih kurang 88.54 Meter Persegi (953.00 Kaki Persegi) (*tertakluk kepada pengesahan pembida/pembeli*)
Pemaju / Pemilik Berdaftar : Sunray Development Sdn Bhd (No. Syarikat: 752961-M)
Pemilik Bermanfaat : Woo Chee Sien
Bebanan : Diserahhak kepada Hong Leong Bank Berhad

Lokasi Dan Keterangan :

Hartanah tersebut adalah sebuah unit apartment servis yang beralamat di **Unit No. #08-10, Menara A, Residensi Mutiara, Jalan Mutiara Emas Utama, Taman Mount Austin, 81100 Johor Bahru, Johor..** (*tertakluk kepada pengesahan pembida/pembeli*)

Harga Rizab:

Hartanah tersebut akan dijual "seperti di mana ia berada" tertakluk kepada harga rizab sebanyak **RM 480,000.00 (Ringgit Malaysia: Empat Ratus Lapan Puluh Ribu Sahaja)** dan Syarat-syarat Jualan di sini dengan cara Penyerahan Hak dari Pemegang Serahhak dan tertakluk kepada Pembeli memperoleh pengesahan / kebenaran yang diperlukan daripada Pemaju dan/atau Pemilik Tanah dan/atau Pihak Berkuasa Negeri dan/atau badan-badan yang relevan (jika ada).

Deposit:

Semua penawar yang ingin membuat tawaran adalah dikehendaki membayar deposit sebanyak **10%** daripada harga rizab ("deposit pendahuluan") secara **bank draf** atau **cashier order** dipalang "AKAUN PENERIMA SAHAJA" atas nama "**HONG LEONG BANK BERHAD / WOO CHEE SIEN**" sebelum jualan lelong dimulakan (bagi bidaan dalam talian, bukti bayaran deposit 10% (melalui pemindahan bank dalam talian) adalah perlu dimuatnaik dan diserahkan dengan pendaftaran sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan) dan membayar perbezaan di antara deposit pendahuluan dan jumlah bersamaan **10%** daripada harga berjaya tawaran sama ada dengan bentuk **tunai** atau **bank draf** atau **cashier order** dipalang "AKAUN PENERIMA SAHAJA" atas nama "**HONG LEONG BANK BERHAD / WOO CHEE SIEN**" sebaik sahaja ketukan tukul oleh Pelelong dibuat (bagi bidaan dalam talian yang berjaya, jumlah perbezaan antara deposit awal dengan jumlah 10% harga bidaan yang berjaya haruslah dibayar kepada Pelelong dalam masa tiga (3) hari bekerja dari jualan lelongan dalam cara seperti yang dinyatakan di atas).Baki harga belian sepenuhnya hendaklah dibayar dalam tempoh **sembilan puluh (90) hari** dari tarikh jualan lelongan kepada **HONG LEONG BANK BERHAD**.

Untuk maklumat lanjut, sila berhubung dengan **TETUAN MANJIT SINGH SACHDEV, MOHAMMAD RADZI & PARTNERS**, Peguambela dan Peguamcara untuk Pihak Pemegang Serahhak yang beralamat di No. 79-1 & 79-2, 1st & 2nd Floor, SS 15/8A, Subang Jaya, 47500 Petaling Jaya, Selangor Darul Ehsan. [No. Rujukan: MS/DIR/AA/LACAB/(21SL-41695/2025/HLBB-HL/AIDA), No. Telefon: 03-5631 0415 | No. Faks: 03-5631 0416 atau Pelelong tersebut. Bakal pembida juga boleh melayari laman web www.vsauction.com.my untuk maklumat lanjut.

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Unit No. 20-04, Level 20, Menara Landmark,
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SUA CHONG YEW

MOHAMAD SHAFIQ BIN MOHAMAD HAIR
Pelelong Berlesen
Ref : SCY/HL/LA/1008/26(JB)

CONDITIONS OF SALE

1. Assignee's Power Of Sale

This sale is made by **HONG LEONG BANK BERHAD** (referred to as "the Assignee") in exercise of the rights, powers and remedies conferred upon the Assignee pursuant to the **Facilities Agreement, Deed of Assignment and Power of Attorney all dated 04th April 2016** (collectively referred to as "the Security Documents") executed by **WOO CHEE SIEN [NRIC NO.: 880407-08-5439]** referred to as ("the Assignors") and in favour of the Assignee and is made subject to all liabilities, obligations, conditions and category of land use, express or implied or imposed upon or relating to or affecting or pertaining to the Property.

2. Bidding

- a. The Auctioneer reserves the right to regulate the bidding and shall have the sole right to refuse any bid or bids without giving any reason for such refusal.
- b. In the event that the auction comprises of more than one (1) property, the Auctioneer shall have the right to:-
 - (i) Determine the order of sale;
 - (ii) Offer the properties for sale either individually or collectively or in any combination or manner as determined by the Auctioneer; and/or
 - (iii) Withdraw any of the properties from sale.
- c. The Auctioneer reserves the right to fix the amount of bid at the time the Property is put up for sale. Subject to the reserve price, the Auctioneer shall fix the sum to commence bidding and regulate the advance of each subsequent bid.
- d. No bid shall be less than the last previous bid and each bid shall be increased by a minimum amount to be determined by the Auctioneer at the time the Property is put up for sale.
- e. The Auctioneer shall have the absolute right to withdraw the Property for sale at any time before the fall of the hammer and either after or without declaring the reserve price.
- f. In case of any dispute as to any bid, the Auctioneer may at his own option forthwith determine the dispute or put the Property up for sale again at the reserve price or at the last undisputed bid or withdraw the Property from the auction sale. The Auctioneer's decision therein shall be final and conclusive.
- g. Subject to these Conditions of Sale and particularly to the reserve price, the highest bidder being so allowed or determined by the Auctioneer shall be the Purchaser.

3. Withdrawal Of Bid

- a. No bid shall be retracted or withdrawn.
- b. In the event any bidder makes a bid but withdraws the same before the fall of the hammer:-
 - (i) The said bidder shall have his/her/its deposit equal to **10%** of the reserve price forfeited forthwith to the Assignee;
 - (ii) The said bidder shall not be entitled to nor have any or further reimbursements, claims and demands whatsoever in nature and howsoever caused against the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents or any other party on account thereof;
 - (iii) The Property shall at the option of the Assignee be put up for sale again at a time, place and reserve price to be fixed by the Assignee at its sole discretion or the Assignee may decide to adjourn the auction sale to another date.

4. Authority To Bid

- a. If the sale is restricted to an individual and not to be sold to a company, society, firm or body corporate as specified by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies, the Property shall be sold to the individual person only.
- b. For Bumiputra lot or if the sale is restricted to Bumiputra only, only Bumiputra is allowed to purchase or to bid or to act for and on behalf of the bidder. For Malay Reserve Land or Native Land, only Malay or Native is allowed to purchase or to bid or to act for and on behalf of the bidder. For all other special quota lot, only the race identified in the special quota lot therein is allowed to purchase or to bid or to act for and on behalf of the bidder. The onus is on all intending bidders to seek the necessary confirmation from the Developer and/or relevant authorities regarding the said restrictions prior to the bidding.
- c. A person who has not reached the age of majority as defined under the Age of Majority Act 1971 (Act 21) or is below 18 years old or is an undischarged bankrupt or is of unsound mind or is not legally competent to purchase the Property as at the date of auction sale shall not be permitted to purchase or to bid in his/her personal capacity or to act as an agent of the principal at the auction sale.
- d. A foreign citizen or foreign company is only allowed to bid for the Property subject to the prevailing legal requirements, guidelines and/or existing policies and if the bid is successful, the sale is subject to the foreign citizen or foreign company applying and obtaining at his/her/its own costs the unconditional consent of the Foreign Investment Committee (if any) and/or relevant State Authorities to the said sale in accordance with the terms stated below.

5. Assignee's Rights

- As Purchaser

- a. Notwithstanding any provisions to the contrary in these Conditions of Sale, the Assignee shall be entitled to bid for the Property whether by itself or its agent and without having to pay any deposit whatsoever.
- b. In the event the Assignee is declared the Purchaser:-
 - (i) The Assignee is at liberty to set off the purchase price or so much as is applicable against the indebtedness owing to the Assignee under the loan/financing and the Security Documents on the date of successful sale plus costs and expenses for the sale and all other costs and expenses whatsoever incidental thereto;
 - (ii) If approvals from any relevant authorities are required in respect of the purchase, then the Assignee shall apply for the approvals after the successful bid and shall only be required to set off the purchase price or so much as is applicable against the indebtedness owing to the Assignee under the loan/financing and the Security Documents on the date of successful sale plus costs and expenses for the sale and all other costs and expenses whatsoever incidental thereto within ninety (90) days from the date of receipt by the Assignee of all the approvals;
 - (iii) However for avoidance of doubt, nothing in the foregoing shall restrict the Assignee's right or discretion to pay the full purchase price by way of set off before the approvals have been obtained;
 - (iv) If any of the approvals are not obtained or are obtained but subject to conditions which are not acceptable to the Assignee, the Assignee shall be entitled to terminate the purchase of the Property and the purchase price or part thereof paid including the deposit which has been paid by way of a reduction of the indebtedness owing to the Assignee or by way of set off shall be reversed and parties shall be placed back in position as if this sale has not taken place;
 - (v) The Assignee shall be entitled at its absolute discretion to assign, novate or transfer all or any of its rights, obligations and interests hereunder to a third party in the event that the Assignee exercises its rights to bid for and/or purchase the Property.

- **Vis-à-vis The Auction**

- c. The Assignee shall be and is hereby at liberty to postpone, adjourn, stand down, call off, withdraw or vacate the auction sale at any time before the fall of hammer with or without notice and without having to provide any reason(s) or ground(s) whatsoever.
- d. Thereafter, the Assignee is entitled to resell the Property at any time subject to such conditions and provisions whether identical with or differing wholly or in part from the conditions and provisions applicable to the Property to be auctioned at the present auction and in such manner as the Assignee may think fit.

6. Prior To The Auction Sale

Prior to the auction sale:-

- a. The Assignee reserves the absolute right at any time to vary, alter, amend or add to the particulars and/or these Conditions of Sale.
- b. All intending bidders shall be required to verify their identities by showing their identity cards to the Auctioneer prior to the commencement of the auction failing which they shall not be entitled to bid.
- c. Any person intending to bid on behalf of another individual, company, society, firm or body corporate shall deliver to and obtain acknowledgement by the Auctioneer prior to the auction on an authority letter signed by the principal on whose behalf the bidder is bidding and containing the principal's full name, identity and address and stating that he/she is acting on behalf of the said individual, company, society, firm or body corporate and is authorised to sign all the necessary documents failing which the bidder shall be deemed to contract in his own name and not as an agent for another.
- d. All intending bidders (with the exception of the Assignee) shall deposit with the Auctioneer **10%** of the fixed reserve price for the Property by way of **bank draft** or **cashier's order** crossed "A/C PAYEE ONLY" made payable to **HONG LEONG BANK BERHAD / WOO CHEE SIEN**. However, the Auctioneer may with the concurrence of the Assignee accept the payment partly by **bank draft** or **cashier's order** and partly in **cash**.

7. Sale : 10% Of Successful Bid Price

- a. The Purchaser (except where the Assignee is bidding) shall as soon as practicable and immediately after the fall of the hammer and in any event before leaving the auction venue sign a form of contract (referred to as "**the Memorandum**") at the foot of these Conditions of Sale and on the same day deposit with the Auctioneer the difference between the amount paid pursuant to Clause 6.d above and the sum equivalent to **10%** of the successful bid price either in **cash** or **bank draft** or **cashier's order** crossed "A/C PAYEE ONLY" made payable to **HONG LEONG BANK BERHAD / WOO CHEE SIEN** or cashier's order shall include any commission/charge levied by the issuing bank and outstation clearing charges which shall be borne by the Purchaser, failing which the deficiency shall be recoverable from the Purchaser. The sums paid by the Purchaser under Clause 6.d and this Clause herein (collectively referred to as "**the Deposit**") shall be held by the Assignee subject to the provisions of these Conditions of Sale.
- b. The Auctioneer reserves the right to hold the Memorandum and not deliver the same to the Purchaser until all payments for the actual deposit are received.

8. Sale : Completion

- **On Or Before The Completion Date**

- a. **Within ninety (90) days** from the date of successful sale (the expiry date of which period referred to as "**the Completion Date**"), the Purchaser shall deposit with the Assignee's Solicitors simultaneously:-
 - (i) The balance of the purchase price is a sum equivalent to 90% of the successful bid price (referred to as "**the Balance Sum**") either by way of **IBG** or **RENTAS** or **bank draft** or **cashier's order** crossed "A/C PAYEE ONLY" made payable to **Hong Leong Bank Berhad (HONG LEONG BANK BERHAD / WOO CHEE SIEN)**. The amount of the bank draft or cashier's order shall include outstation clearing charges which shall be borne by the Purchaser, failing which the deficiency shall be recoverable from the Purchaser; and
 - (ii) A copy of the requisite consents or confirmations (as the case may be) of the Developer and/or Proprietor and/or State Authorities and/or relevant bodies approving the sale (including transfer or assignment) in favour of the Purchaser, if necessary and/or required, subject firstly to the Assignee being satisfied with the conditions if imposed, otherwise the Assignee may elect to terminate the sale under Clause 11.

- **Extension**

- b. The Completion Date will not be extended unless the Purchaser shall have at least fourteen (14) days before the Completion Date applied in writing for an extension of time to the Assignee and the Assignee may at its absolute discretion without assigning any reason whatsoever either:-
 - (i) Reject such request in which event all monies paid by the Purchaser hitherto including the Deposit shall be forfeited absolutely and immediately for which the Purchaser shall not be entitled to nor have any or further reimbursements, claims and demands whatsoever in nature and howsoever caused against the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents and any other party on account thereof; or
 - (ii) Agree to grant an extension of time subject to conditions imposed by the Assignee including but not limited to the imposition of non-refundable late payment charges / compensation charges on the balance unpaid or outstanding purchase price at such rate as the Assignee shall determine and to be calculated on a daily basis for the whole duration of the extended period granted and also to pay such sum within the time and in the manner as stipulated by the Assignee.

Such decision by the Assignee shall be binding on the Purchaser.

- **Charges**

- c. Notwithstanding any contrary terms and conditions which may be imposed by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto on the Assignee in granting the consent or confirmation (as the case may be) to the sale herein, it is hereby agreed that **only** arrears of quit rent, assessment rate and service charges (collectively referred to as "**the Outstanding Charges**") within a period of six (6) years prior to the date of successful sale of the Property which are lawfully and rightfully due and payable to the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto up to the date of successful sale of the Property shall be deducted from the purchase price upon receipt of the Balance Sum PROVIDED THAT the Assignee reserves the right to refuse to pay nor shall the Assignee be obliged to pay:-
 - (i) Any Outstanding Charges that are time-barred i.e. charges which have remained unpaid for more than six (6) years prior to the date of successful sale of the Property irrespective of any payment or acknowledgement or judgment made or obtained on the said charges;

- (ii) Any Outstanding Charges that are excessively charged resulted from eg duplicate or double counting, wrong calculation or any other similar circumstances;
- (iii) Any Outstanding Charges wrongfully imposed including but not limited to being charged without any basis whatsoever; and/or
- (iv) Any bills issued by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto for the Outstanding Charges but only received by the Assignee or the Assignee's Solicitors more than seventy-five (75) days from the date of the successful sale.

Such decision by Assignee on what is due and payable shall be binding on the Purchaser of which the Purchaser hereby expressly agrees.

- d. The Outstanding Charges due and payable immediately after the date of successful sale of the Property shall be solely borne and paid by the Purchaser.
- e. Where applicable, it shall be the duty of the Purchaser to obtain at the Purchaser's own costs the particulars as stated in *Section 22D(4) of the Housing Development (Control and Licensing) Act 1966* and to obtain copies of the charges payable from the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto and to forward copies thereof together with the calculations as to the apportionment of the respective parties' liability thereof to the Assignee's Solicitors for the Assignee's approval. For this purpose, the Purchaser shall also furnish the Assignee's Solicitors with the Purchaser's account details in order for the Assignee to process payment of the Assignee's portion of the Outstanding Charges pursuant to and in accordance with Clause 8 (c) above.
- f. In the event the Purchaser shall pay such arrears (if any) of the Outstanding Charges in advance to the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto:-
 - (i) The Purchaser is not entitled to deduct the payment towards the arrears (if any) from the Balance Sum;
 - (ii) Due apportionment and reimbursement for the payment (if any) made by the Purchaser towards the arrears shall only be made after the Assignee has received the Balance Sum and subject to the Assignee's approval and other provisions of these Conditions of Sale. For this purpose, the Purchaser shall produce receipts evidencing payment together with the Purchaser's account details in order for the Assignee to reimburse the Purchaser in accordance with this Clause 8(f)(ii) accordingly.
- g. Nothing herein shall impose any obligation on the part of the Assignee to pay any outstanding water, electricity, telephone, utilities, gas, sewerage, taxes, rates, bills, any type of interest, fine, penalty, losses incurred by reason of any breach of written laws, late payment charges, damages, compensation, other form of maintenance or management charges (including but not limited to security charges, charges incurred in relation to car park / accessory parcel, deposits, sinking / building / common / maintenance / management fund), costs for renovation / alteration / additional works, contribution, subscription, licence, dues, levies, insurance, premium, rents, commission, fees, costs and expenses (including but not limited to legal fees, disbursements, stamp duty, registration fees, administrative or vetting fees and transfer costs), other outgoings and charges in any form whatsoever (including for any increase in area of the Property imposed by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto irrespective of whether the same was imposed or incurred before the date of successful auction, any penalty thereof in connection with incidental to or pursuant to the Assignment the Memorandum of Transfer and all other documents necessary for affecting the transfer or subsequent transfer [as the case may be] or assigning the beneficial ownership of the Property to the Purchaser or that as may be due to or imposed by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto notwithstanding that the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and/or third parties entitled thereto may require such payments to be made by the Assignee). The Purchaser hereby expressly agrees that such costs and expenses shall be solely borne and paid by the Purchaser.
- h. Any other costs, expenses and charges not specifically mentioned and/or specified in Clause 8.c, Clause 8.d, Clause 8.e, Clause 8.f and Clause 8.g hereof which are outstanding shall be solely borne and paid by the Purchaser.

- Execution / Delivery Of Documents

- i. Upon payment of all monies mentioned and/or specified in Clause 6.d, Clause 7.a, Clause 8.a(i), Clause 8.c, Clause 8.d, Clause 8.e, Clause 8.f, Clause 8.g and Clause 8.h above and subject to the fulfillment of Clause 9 below by the Purchaser, the Assignee shall:-
 - (i) Execute or cause to be executed as soon as possible at the Purchaser's own costs and expenses (including legal fees, stamp duty and registration fees) an Assignment (in the form and substance acceptable to and upon the terms and conditions stipulated by the Assignee at its absolute discretion) in favour of the Purchaser of all the rights title interests and benefits under the Sale and Purchase Agreement entered into between the Developer and/or Proprietor of the Property and the Assignor or the original purchaser(s) when the Assignor is not the original purchaser of the Property.
Where applicable, the Assignee shall be entitled to have a sufficient covenant of indemnity inserted in the Assignment in order for the Purchaser to assume all liabilities and obligations pertaining to the Property.
The Assignee shall not be required to assign the Property to any person other than the Purchaser; and
 - (ii) Deliver to the Purchaser or the Purchaser's Solicitors the duly executed Assignment and certified true copy(ies) of the Sale and Purchase Agreement and previous Assignment within the Assignee's custody.
If any of the aforesaid documents is not available, the Assignee shall use its best endeavors to provide certified true copy(ies) or such other acceptable documentary evidence of previous transactions thereof.
- j. Where applicable, the Purchaser undertakes to forward to the Developer the duly stamped Proclamation of Sale and the Memorandum together with the full payment of all sums and outgoings due to the Developer under the Sale and Purchase Agreement as required by *Section 22D(2) of the Housing Development (Control and Licensing) Act 1966* within fourteen (14) days from the date of stamping of the Assignment and to forward a copy of the cover letter or acknowledgment of receipt by the Developer to the Assignee or the Assignee's Solicitors within seven (7) days after the issuance of the cover letter or acknowledgment of receipt.

- Charge / Transfer

- k. If the separate document of title or strata title for the Property has been issued whether before on or after the date of auction sale, the Assignee shall not be required to procure a Memorandum of Transfer nor to register its charge as prescribed by the National Land Code 1965 or Sarawak Land Code or the Land Ordinance Cap. 68 of the Laws of Sabah (where applicable) in favour of the Purchaser from the Developer and/or Proprietor (as the case may be).
- l. The transfer of the Property from the Developer and/or Proprietor (as the case may be) shall be prepared and procured by the Purchaser at the Purchaser's own costs (including costs of transfer from the Developer and/or Proprietor to the Assignor where necessary) and expenses who undertakes to pay such sums and comply with the conditions (if any) imposed by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies pertaining to the registration of such transfer of the Property.
- m. The Purchaser undertakes to inform the local authority of the change of ownership and to file the necessary form within fourteen (14) days from the date of stamping of the Assignment.

9. Consent

- Application

- a. The Property is sold subject to the Purchaser at own costs and expenses applying for the approval or consent or confirmation (if any) required from the Developer and/or Proprietor and/or State Authorities and/or relevant bodies to transfer or assign the Property in favour of the Purchaser within thirty (30) days or such extended period as allowed by the Assignee from the date of successful sale whereby the Purchaser shall forward a copy of the application letter for the said approval or consent or confirmation duly acknowledged receipt by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies to the Assignee's Solicitors and obtain the said approval or consent or confirmation on or before the Completion Date.
- b. The Purchaser is to comply with all the terms and conditions as imposed by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies as the case may be in granting the said approval or consent or confirmation to transfer or assign the Property to the Purchaser on or before the Completion Date or such period as may be specified by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies whichever is the earlier.
- c. All sums or dues whatsoever owing to the Developer and/or Proprietor and/or State Authorities and/or relevant bodies and all fees, charges and expenses in connection with incidental to or pursuant to the said application for approval or consent or confirmation shall be solely borne and paid by the Purchaser.
- d. The Purchaser undertakes to keep the Assignee or the Assignee's Solicitors informed at all times of the development and progress of such application for approval or consent or confirmation and shall forward a copy of the approval or consent or confirmation to the Assignee's Solicitors immediately within seven (7) days upon receipt of the same.

- No Consent

- e. No warranty is given by the Assignee that any of the abovementioned approval or consent or confirmation can be obtained but in the event of:-
 - (i) Any of the approval or consent or confirmation not being obtained from the Developer and/or Proprietor and/or State Authorities and/or other relevant bodies for reasons not attributable to any act of default or omission by the Purchaser on or before the Completion Date; or
 - (ii) Any of the approval or consent or confirmation from the Developer and/or Proprietor and/or State Authorities and/or other relevant bodies shall be subject to conditions which are not acceptable to the Assigneethen the Assignee is absolutely entitled to terminate the sale of the Property at its discretion by giving the Purchaser written notice thereof subject to Clause 11.c below.

- Restriction In Interest

- f. In the event there is any restriction in interest on the Property it is the duty of the Purchaser to comply with the restriction in interest and ensure that the sale is completed on or before the Completion Date subject to other provisions in these Conditions of Sale.

- Foreign Citizen / Company

- g. In the event the Purchaser is a foreign citizen or foreign company, the sale is subject to the Purchaser applying and obtaining at his/her/its own costs the unconditional consent of the Foreign Investment Committee (if any) and/or relevant State Authorities to the said sale on or before the Completion Date.

10. Progressive Payment

For Property in which there is / are outstanding progressive payment(s) due to the Developer:-

- a. In the event that the Purchaser shall require a loan/financing to enable the completion of the purchase herein, the Purchaser shall notify the Assignee within thirty (30) days from the date of successful sale the details of the loan/financing and the Purchaser's Financier by providing the Assignee a copy of the letter of offer for financing and on or before the Completion Date, the Purchaser shall cause the Purchaser's Financier to issue a letter of undertaking to pay the balance progressive payment according to the schedule of the Sale and Purchase Agreement in favour of the Developer and to release the Assignee from its original undertaking.
- b. In the event that the Purchaser shall not require a loan/financing to enable the completion of the purchase herein, on or before the Completion Date, the Purchaser shall procure a letter of undertaking (acceptable to the Assignee) to pay the balance progressive payment according to the schedule of the Sale and Purchase Agreement in favour of the Developer and to release the Assignee from its original undertaking.
- c. Any outstanding progressive payment, charges, interests and/or penalty imposed as a result of the delay in settlement of the balance progressive payment or caused by the delay in the issuance of a letter of undertaking as stated above shall be solely borne and paid by the Purchaser.

11. Default / Termination

- a. In the event that the Property has been sold contrary to or any person bids in contravention of the provisions in Clause 4 above, then such sale shall be cancelled and become null and void and of no further effect wherein all monies paid by the Purchaser hitherto including the Deposit shall be forfeited absolutely and immediately.
- b. If the Purchaser defaults in complying with any of these Conditions of Sale or in payment of any sums payable, then the Assignee may (without prejudice to its rights for specific performance) treat such default as a repudiation of the contract and terminate the sale by giving the Purchaser written notice thereof, in which event all monies paid by the Purchaser hitherto including the Deposit shall be forfeited absolutely and immediately.
- c. In the event of the sale being set aside for any reason whatsoever by the Assignee or by an Order of Court (other than that due to any act of default and/or omission by the Purchaser), then such sale shall be cancelled and become null and void and of no further effect wherein **only** monies paid by the Purchaser towards the account of the purchase price shall be refunded to the Purchaser free of interest less costs and fees incurred by the Assignee in connection with or relating to the sale. The Purchaser shall not be entitled to an account thereof or any claim or demand whatsoever against the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents on the above. A certificate by an officer of the Assignee verifying such expenses and/or fees shall be final and conclusive and shall be binding on the Purchaser. Upon payment by the Assignee herein, the Purchaser shall have no other or further claims, or demands whatsoever in nature and howsoever caused against the Assignee, the Assignee's Solicitors and the Auctioneer or their respective servants or agents.
- d. If in the meanwhile the Purchaser has entered into possession of the Property, then the Purchaser is liable at own costs to reinstate the Property and thereafter peaceably to yield up vacant possession of the Property to the Assignee within fourteen (14) days from the date of notification of such termination failing which the Purchaser shall pay the Assignee interest/compensation charges at the rate of 10% per annum on the total purchase price calculated on daily basis from the date of such notification to the date of actual delivery of vacant possession and the Assignee reserves its right to take all further necessary steps or actions to recover or resume possession of the Property at the Purchaser's costs and expenses.

In the event the sale is terminated for any reason whatsoever, the Assignee shall not be liable to the Purchaser for the cost of any improvements to the Property carried out by the Purchaser.

The costs to reinstate the Property (if any damage is caused by the Purchaser in possession thereof) or expenses to recover possession of the Property from the Purchaser shall be deducted and set-off against the monies paid herein towards account of the purchase price and thereafter in the event there is any residue, the said residue shall be refunded to the Purchaser free of interest or if the monies paid are not sufficient to cover all such costs and expenses, the Purchaser shall then reimburse and pay the balance amount outstanding to the Assignee failing which the Assignee shall be entitled to take all further necessary steps or actions to recover the same.

For this purpose a certificate duly signed by an officer of the Assignee verifying the amount of such costs and expenses shall be accepted by the Purchaser as correct and conclusive. It shall be deemed final and binding upon the Purchaser.

- e. Subject as aforesaid, the Purchaser shall not be entitled to nor have any or further reimbursements, claims, demands or legal recourses of action or remedies whatsoever in nature and howsoever caused against the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents or any other party on account thereof.
- f. The Purchaser or the Purchaser's Solicitors shall return or cause to be returned the Assignment or the Memorandum of Transfer and other documents to the Assignee with the Assignee's interest intact PROVIDED ALWAYS THAT if the Assignment or the Memorandum of Transfer has been adjudicated and stamped, the Purchaser or the Purchaser's Solicitors shall surrender the same to the relevant authorities to obtain a refund of the stamp duty paid and for cancellation of the same.
- g. The Assignee shall be at liberty to put up the Property for sale again at a time, place and reserve price to be fixed by the Assignee at its sole discretion or to dispose of and/or otherwise deal with the Property in whatsoever manner the Assignee shall think fit without further reference to the Purchaser.

The costs and expenses of in connection with and resulting from such resale together with any deficiency in the price resulting from the resale or the purchase price if there is no resale (as the case may be) shall be recoverable from the defaulting Purchaser.

For this purpose a certificate duly signed by an officer of the Assignee verifying the amount of such costs and expenses shall be accepted by the Purchaser as correct and conclusive. It shall be deemed final and binding upon the Purchaser.

12. Vacant Possession

- a. The Assignee does not undertake to deliver vacant possession of the Property to the Purchaser.
- b. The Purchaser after the payment of the purchase price in full together with any accrued interest/or compensation charges, costs and expenses thereon, if any, shall at his/her/its own costs and expenses take possession of the Property without any obligation on the part of the Assignee or its agent to give vacant possession.
- c. The Purchaser shall take the Property on an "as is where is basis" and shall not require the connection of water, electricity or other utilities thereto nor removal of any rubbish thereat.
- d. No warranty is given that the Property can be used for occupation and in the event of circumstances existing which prevent entry or occupation by the Purchaser, such circumstances shall not annul the sale or entitle the Purchaser to rescind the contract or claim a reduction in the purchase price or for damages.

13. Search, Enquiry, Investigation, Examination And Verification

- a. The Property is sold on an "as is where is basis" subject to all the necessary inspection, search (including but not limited to the status of title), enquiry (including but not limited to the terms of consent to transfer and/or assignment and outstanding charges), investigation, examination and verification of which the Purchaser is already advised to conduct prior to the auction and which the Purchaser warrants to the Assignee has been conducted by the Purchaser's independent legal advisors at the time of execution of the Memorandum.
- b. The intending bidder or the Purchaser is responsible at own costs and expenses to make and shall be deemed to have carried out own search, enquiry, investigation, examination and verification on all liabilities and encumbrances affecting the Property, the title particulars as well as the accuracy and correctness of the particulars and information provided.
- c. The Purchaser shall be deemed to purchase the Property in all respects subject thereto and shall also be deemed to have full knowledge of the state and condition of the Property regardless of whether or not the said search, enquiry, investigation, examination and verification have been conducted.
- d. The Purchaser shall be deemed to have read, understood and accepted these Conditions of Sale prior to the auction and to have knowledge of all matters which would have been disclosed thereby and the Purchaser expressly warrants to the Assignee that the Purchaser has sought independent legal advice on all matters pertaining to this sale and has been advised by his/her/its independent legal advisor of the effect of all the Conditions of Sale.
- e. Neither the Assignee nor the Auctioneer shall be required or bound to inform the Purchaser of any such matters whether known to them or not and the Purchaser shall raise no enquiry, requisition or objection thereon or thereto.

14. Security Documents

- a. No representation warranty or undertaking whatsoever is made or should be implied as to the authenticity of the Security Documents.
- b. The Assignee shall not be required to explain or remedy any discrepancy or omission discovered in the Security Documents.
- c. The Purchaser is treated as buying the Property with full knowledge of the Security Documents whether or not inspection of the Property occurs and shall raise no objection or requisition regarding the contents thereof.

15. Identity Of Property

- a. The Purchaser shall admit the identity of the Property purchased with that described in the Proclamation of Sale and such other documents such as muniments offered by the Auctioneer as to the title to the Property upon the evidence afforded by the comparison of the description in the particulars and muniments respectively and with that described in the Security Documents without requiring any further proof.
- b. The Purchaser shall accept the area shown in the particulars of the Proclamation of Sale or Conditions of Sale or Memorandum. The Assignee shall not be liable to the Purchaser for any discrepancy (ies) appearing after the sale concerning the identity of the Property purchased or the area shown in the particulars of the Conditions of Sale.
- c. Upon issuance of the strata/individual title to the Property, if the land or floor area is found to exceed that as described and additional payment is imposed for the excess area by the Developer and/or relevant authorities, then such additional payment shall be borne and paid solely by the Purchaser.
- d. If the land or floor area of the Property is found to be less than that as described, any claim for the reduced area shall be undertaken solely by the Purchaser against the Developer and/or such other party and the auction sale herein shall not be annulled and neither the Assignee, the Assignee's Solicitors nor the Auctioneer shall be liable thereof for such claim.

- 16. Condition Of Property**
- a. The Assignee makes no representation as to the ownership of furniture, fittings, fixtures, appliances, collectibles, assets of a business, trade inventories, supplies etc situated at the Property which items may be on hire purchase, lease, deferred sale or assignment from third party. In such cases the Assignee accepts no liability for any payments which may be outstanding in respect thereof and the Property is sold subject thereto.
 - b. No representation warranty or undertaking whatsoever is made or should be implied as to whether or not the Property complies with any relevant building by-laws or legislation. The fact (if such be the case) that the Property or renovations thereat may contravene building by-laws or legislation shall not annul the sale or entitle the Purchaser to rescind the sale or claim damages or diminution in price.
- 17. Restrictive Covenants**
- a. The Property is believed and shall be taken to be correctly described and is sold subject to:-
 - (i) All existing easement, public and private right of way, support, drainage, light and all other rights or other incidents (if any), lease, tenancy, occupier, encroachment, trespass, nuisance, charge, lien, caveat, previous sale and purchase, previous assignment, covenant, common right and liability (including but not limited to liability to local authorities incurred but not ascertained and any rate made but not demanded), express and implied condition, restriction-in-interest and encumbrances subsisting thereon or there over without any obligation arising for the Assignee to define the same respectively;
 - (ii) Any notice or knowledge of acquisition proceedings, encroachment or that the Government or other authority has any immediate intention of acquiring the whole or any part of the Property for road, back lane or other improvement scheme whatever affecting the same.
 - b. The Purchaser shall be deemed to have full knowledge of the nature and effect thereof and shall make no objection or requisition in respect thereof.
- 18. Representation / Warranty**
- a. All statements contained herein or made in the Proclamation of Sale or otherwise relating to the Property are made without responsibility on the part of the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents.
 - b. Such statements are statements of opinions and are not to be taken or relied upon as or implying a statement or representation of fact and any intending bidders must satisfy themselves by inspection or otherwise as to the correctness of any such statements.
 - c. Neither the Assignee, the Assignee's Solicitors, the Auctioneer nor any person in their employment has any authority to make or give any representation or warranty whatsoever in relation to the Property.
 - d. No error, mis-statement, mis-description, omission or the existence of and/or intention for encroachment or acquisition shall annul the sale nor shall any abatement or compensation be allowed in respect thereof.
- 19. Exclusion Of Liability**
- Unless expressly provided herein, the Assignee, the Assignee's Solicitors, the Auctioneer or their respective servants or agents shall under no circumstances be liable to any bidder or the Purchaser including but not limited to breach of contract, loss of profit or earnings or goodwill, any liability in tort in relation to any matter, thing, issue or dispute arising out of in connection with or in respect of the sale of the Property whatsoever and howsoever caused or arising.
- 20. Risk Of The Property**
- a. Upon the fall of the hammer all risks of the Property as regards to any loss, damage or depreciation thereof arising of whatsoever nature or howsoever occurring shall pass to the Purchaser.
 - b. The Purchaser shall at own costs insure the Property against damage by fire, usual perils, other accident, state of cultivation, non-occupation or otherwise.
- 21. Advice**
- a. The Purchaser hereby confirms and represents to the Assignee that the Purchaser has sought obtained and relied upon his own independent advice and judgment and has not relied upon any representation statement or advice from the Assignee, the Assignee's Solicitors or the Auctioneer or any of them or their respective agents, officers or servants.
 - b. The Purchaser is advised to appoint Solicitors to act on his/her/its behalf and in the event no solicitor is appointed by the Purchaser, the Purchaser is deemed to have elected not to be represented in this sale.
- 22. Dispute**
- a. In the event of any dispute whatsoever in respect of the sale, the Purchaser hereby expressly agrees to resolve the same with the Assignee.
 - b. Notwithstanding the above, the Assignee still reserves all its rights to refer any unresolved dispute or claim to the proper forum.
- 23. Governing Law And Jurisdiction**
- a. The auction and any resulting contract for sale of the Property on the terms stated in these Conditions of Sale shall be governed and construed in accordance with the laws of Malaysia and any dispute arising shall be referred to the Courts of Malaysia for determination.
 - b. The Courts of Malaysia shall exercise exclusive jurisdiction over such dispute PROVIDED ALWAYS that the Assignee may in its absolute discretion be entitled to waive this right and submit to the jurisdiction of the courts of the country in which the bidder or Purchaser is resident.
- 24. Time Of The Essence**
- Time wherever mentioned herein shall be of the essence of contract.
- 25. Severability**
- If any provision, term, condition, stipulation, covenant or undertaking of these Conditions of Sale is or becomes illegal, void, invalid, prohibited or unenforceable in any respect the same shall be ineffective to the extent of such illegality, voidness, invalidity, prohibition or unenforceability without invalidating in any manner whatsoever the remaining provision, term, condition, stipulation, covenant or undertaking hereof.
- 26. Service**
- a. Any notice, request or demand required to be served on any party hereto shall be in writing and shall be deemed to be sufficiently served:-
 - (i) If it is delivered personally to the address of the party provided pursuant to these Conditions of Sale or at the designated branch of the Assignee as stipulated herein; or
 - (ii) If it is sent by prepaid registered post to the address of the party provided pursuant to these Conditions of Sale or by AR Registered Post to the designated branch of the Assignee as stipulated herein;

and such notice, request or demand shall be deemed to have been received

(iii) If delivered personally at the time given by hand or courier; or

(iv) If sent by prepaid registered post after 3 days of posting; or

(v) If sent by AR Registered Post upon actual receipt.

- b. Any legal process issued may be served on any party in the same manner stipulated for the service of notice, request or demand and such legal process shall be deemed served in the same manner as for the notice, request or demand.

27. General

- a. No objection or requisition shall be raised as to the loss of the original(s), the failure to stamp documents, insufficiency of stamp duty paid thereon or the failure to register any instruments.
- b. In the event of any discrepancy, mis-statement, misrepresentation, omission or error appearing in the various translations on the particulars of the Proclamation of Sale or Conditions of Sale or Memorandum herein, the English version shall prevail.
- c. The headings are for ease of reference only and shall not be construed as forming part of these Conditions of Sale.
- d. The Proclamation of Sale, Conditions of Sale and Memorandum are to be read together and shall collectively constitute a binding contract. Prospective bidders who submit their bids for the Property online at the Auctioneer's Website shall be additionally bound by the terms and conditions at the Auctioneer's Website.
- e. Where two or more persons, firms or corporations are parties to the Agreement, their obligations and liabilities shall be joint and several.
- f. The singular includes the plural and vice versa and words importing one gender only include all other genders.

28. General terms and conditions relating to Online Bidding

- a. Online bidders who log on to the Auctioneer's Website with their respective username and password are responsible for ensuring that internet access and connectivity are in good condition during the whole auction process until conclusion thereof. The Assignee and such other parties acting on behalf of the Assignee including the Auctioneer and the Assignee's Solicitors shall not be responsible or liable for any disruptions, delays, failures, errors, omissions or loss of transmitted information or data due to unsatisfactory internet access or any online disruptions that may occur during the whole auction process at the Auctioneer's Website.
- b. As an online bidder, placing a bid is binding upon the bidder and the bid cannot be retracted in any manner whatsoever after the fall of the hammer.
- c. As an online bidder, you agree that you will not use any device, software, method or routine to interfere or attempt to interfere with the auction process.
- d. Upon successful online bidding, the successful online bidder shall sign the Memorandum at the foot of these Conditions of Sale and pay to the Auctioneer the difference between the initial deposit and the sum equivalent to 10% of the successful bid price no later than 3 working days from the date of the auction sale. In default of either or both the aforementioned by the successful online bidder, the Assignee is at liberty to forfeit all such sums paid by the successful online bidder and put the Property up for auction again and clause 11 above shall be applicable.
- e. Online bidders who log on to the Auctioneer's Website shall not hold the Assignee or the Assignee's Solicitors liable for any losses and damages arising out of or related or connected to the usage of the Auctioneer's Website and shall do so at their own risk entirely with no recourse to the Assignee or the Assignee's solicitors.
- f. Online bidders who cannot log on to the Auctioneer's Website for any reason whatsoever before, during and after the process of public auction shall not hold the Assignee or the Assignee's Solicitors liable for any losses and damages arising out of or connected with such failure to log on to the Auctioneer's Website regardless of whether the public auction proceeds or not.

29. Government Taxes and/or statutory/regulatory imposed charges, fees etc

- a. For the purpose of this Clause :
- "Tax" means any present or future, direct or indirect, Malaysian or foreign tax, levy, impost, duty, charge, fee, deduction or withholding of any nature, that is imposed by any Appropriate Authority, including, without limitation, any consumption tax such as the goods and services tax ("GST") and other taxes by whatever name called, and any interest, fines or penalties in respect thereof.
- "Appropriate Authority" means any government or taxing authority.
- b. The purchase price and all other monies to be paid by the Purchaser to the Assignee under this Agreement, including any amount representing reimbursements to be paid by the Purchaser to the Assignee, is exclusive of any Tax, and shall be paid without any set-off, restriction or condition and without any deduction for or on account of any counterclaim or any deduction or withholding.
- c. In the event the Purchaser is required by law to make any deduction or withholding from the purchase price and/or all other monies payable to the Assignee under this Agreement in respect of any Tax or otherwise, the sum payable by the Purchaser in respect of which the deduction or withholding is required shall be increased so that the net purchase price and/or the net amount of monies received by the Assignee is equal to that which the Assignee would otherwise have received had no deduction or withholding been required or made.
- d. The Purchaser shall in addition to the purchase price and all other monies payable, pay to the Assignee all applicable Tax at the relevant prevailing rate and/or such amount as is determined by the Assignee to cover any Tax payments/liabilities/obligations in connection therewith, without any set-off, restriction or condition and without any deduction for or on account of any counterclaim or any deduction or withholding, apart from any Taxes which may be required under any laws to be paid by the Purchaser directly to any Appropriate Authority, which the Purchaser shall remit directly to the Appropriate Authority .
- e. If at any time an adjustment is made or required to be made between the Assignee and the relevant taxing authority on account of any amount paid as Tax as a consequence of any supply made or deemed to be made or other matter in connection with this agreement by the Assignee, a corresponding adjustment may at the Assignee's discretion be made as between the Assignee and the Purchaser and in such event, any payment necessary to give effect to the adjustment shall be made.
- f. All Tax as shall be payable by the Purchaser to the Assignee as herein provided shall be paid at such times and in such manner as shall be requested by the Assignee.
- g. The Purchaser hereby agrees to do all things reasonably requested by the Assignee to assist the Assignee in complying with its obligations under any applicable legislation under which any Tax is imposed. In the event a new Tax is introduced and such Tax is required to be charged on the transaction contemplated in this Agreement, the Purchaser agrees to provide its fullest cooperation to the Assignee in assisting the Assignee in complying with its obligations under the relevant laws.
- h. For the avoidance of doubt, the parties agree that any sum payable or amount to be used in the calculation of a sum payable expressed elsewhere in this agreement has been determined without regard to and does not include amounts to be added on under this clause on account of Tax.

CONTRACT

MEMORANDUM :- At the sale by Public Auction dated this **29th June 2025**, of the subject property comprised in the foregoing particulars that is to say the rights, title, interest and benefits under the **Sale and Purchase Agreement dated the 24th January 2016** entered into between **SUNRAY DEVELOPMENT SDN BHD (COMPANY NO.: 752961-M)** ("The Vendor") of the first part and **WOO CHEE SIEN** ("The Purchaser(s)") of the second part in relation to the subject property identified as **Developer's Parcel Lot No. A-08-10, Type No. B, Level No. 08, Block Tower A1, Havona** bearing postal address **Unit No. #08-10, Menara A, Residensi Mutiara, Jalan Mutiara Emas Utama, Taman Mount Austin, 81100 Johor Bahru, Johor.** (hereinafter referred to as "the Property") to the highest bidder(s) stated below has/have been declared as the Purchaser(s) of the said subject property for the sum of **RM** A sum of **RM** has been paid to the Assignee by way of deposit and the Purchaser(s) agree(s) to pay the balance of the purchase money within **ninety (90) days** from the date of the auction sale and complete the purchase. The Purchaser(s) also confirm(s) that he/she/they has/have sought independent legal advice concerning every aspect of the sale including the terms and conditions relating thereto and has/have understood, read and been advised by his/her/their independent legal counsel of the terms and conditions of the sale and fully agree(s) to abide by the Conditions Of Sale aforesaid. The Auctioneer hereby confirms the said purchase and the Solicitors acknowledge receipt of the said deposit on behalf of the Assignee.

Pursuant to clause 8 of the Conditions of Sale, the Completion Date of the Balance 90% of Purchase Price: 26.09.2026.

PURCHASER PARTICULAR:-

NAME :	PURCHASE PRICE :	<u>RM</u>
NRIC NO. :		(Successful Bid Price)
ADDRESS :	DEPOSIT PAID :	<u>RM</u>
	BALANCE DUE :	<u>RM</u>

TELEPHONE NO. :

SIGNATURE OF PURCHASER'S AUTHORISED AGENT

**FOR MESSRS MANJIT SINGH SACHDEV,
MOHAMMAD RADZI & PARTNERS**

NAME :

NRIC NO. :

TELEPHONE NO.:

**FOR MESSRS VISION SKYBIDZ AUCTION CENTRE SDN BHD
SUA CHONG YEW (LICENSED AUCTIONEER)**

Ref: SCY/HL/LA/1008/26(JB)

Photo Exhibit



General view of the subject property

Particulars of Property:

Master Title HS(D) 403854
PTD No. 67756
Mukim of Tebrau
District of Johor Bahru
State of Johor

Property Description:

The subject property is a service apartment unit bearing postal address Unit No. #08-10, Menara A, Residensi Mutiara, Jalan Mutiara Emas Utama, Taman Mount Austin, 81100 Johor Bahru, Johor.

Our Ref:

SCY/HL/LA/1008/26(JB)

Scale:

Not By Scale



SKETCHED FLOOR PLAN
OF THE SUBJECT PROPERTY
UNIT NO. #08-10, MENARA A
RESIDENSI MUTIARA
JALAN MUTIARA EMAS UTAMA
TAMAN MOUNT AUSTIN
81100 JOHOR BAHRU
JOHOR DARUL TAKZIM



TD AZIZ SDN. BHD.

(Surveyor No. 95217 A) (V611/0715)
Surveyor, Property Consultants, Property Managers,
Registered Valuers & Real Estate Agents

In association with
King Sturge

International Property Consultants

Reference No. V/HLB/JP/013/1022/FC

Checked by : MR Prepared by : IS

Scale : Not To Scale

ONLINE TERMS AND CONDITIONS

1. RECITALS

- 1.1 The Online Terms and Conditions ("**Online Terms & Conditions**") shall apply to every electronic public auction sale for the immovable property ("**public auction**") made by/of Hong Leong Bank Berhad via www.vsauction.com.my ("**VSAC website**").
- 1.2 "**VSAC website**" is a website owned and operated by **Vision Skybidz Auction Centre Sdn Bhd** ("**Vision Skybidz Auction Centre Sdn Bhd**") of Unit No. 20-04, Level 20, Menara Landmark, No. 12, Jalan Ngee Heng, 80888 Ibrahim International Business District, Johor Darul Ta'zim.
- 1.3 The Online Terms & Conditions specified herein shall be read together with the Conditions of Sale as attached to the Proclamation of Sale ("**Conditions of Sale**").
- 1.4 The public auction shall be conducted by the Auctioneer of Vision Skybidz Auction Centre Sdn Bhd ("**the Auctioneer**") at the office of Vision Skybidz Auction Centre Sdn Bhd and/or at any specified auction venue, date and time stated in the Proclamation of Sale.
- 1.5 Intending bidders who are login to VSAC website and interested to participate in the public auction ("**Online Bidders**") are required to agree and accept the Online Terms & Conditions before proceeding with the registration and Online Bidding and shall be deemed to have read and agreed to the Online Terms & Conditions prior to the registration and Online Bidding.
- 1.6 Online Bidders are solely responsible to visit and/or login to the correct and valid VSAC website at www.vsauction.com.my and not otherwise. The Assignee/Bank, the Assignee/Bank's Solicitors, the Auctioneer, Vision Skybidz Auction Centre Sdn Bhd and VSAC website and their respective agents or servants shall not be liable if Bidders intentionally or unintentionally, wrongly or mistakenly visit and/or login to fake, fraudulent and scam website.
- 1.7 The property as stated in the Proclamation of Sale and as shown in the VSAC website herein referred to as "**the property**".
- 1.8 Online Bidders who have registered online, deposited the 10% deposit of the fixed reserve price of the property within the specified time, fulfill other conditions as required herein and the Conditions of Sale and received online verification by Vision Skybidz Auction Centre Sdn Bhd or VSAC website is herein referred to as "**registered Online Bidders**".
- 1.9 Intending bidders who appear in the auction venue and deposited the 10% deposit of the fixed reserve price of the property and who have complied with the Conditions of Sale is herein referred to as "**On-site Bidders**".
- 1.10 Every public auction may be participated by the registered Online Bidders and On-site Bidders.
- 1.11 "**Online bidding**" is a process of bidding in a public auction where registered Online Bidders can bid online from anywhere via a computer, smart phone or any device with internet connection without having to appear in the auction venue.
- 1.12 The Auctioneer may from time to time has the sole discretion to add, modify, or delete any Online Terms & Conditions, and such additions, modifications or deletions are binding upon registered Online Bidders in public auction.
- 1.13 Registered Online Bidders are responsible to ensure that the internet access is in good condition during the process of public auction is being conducted. Unsatisfactory internet access may disrupt bids made by the registered Online Bidders.
- 1.14 VSAC website and Vision Skybidz Auction Centre Sdn Bhd shall not be liable for any disruptions, delays, failures, errors, omissions, or loss of transmitted information due to the unsatisfactory internet access or any online disruptions that may occur during the process of auction.
- 1.15 Any decision or instruction made by the Auctioneer shall be final and binding on the registered Online Bidders in the public auction.

2. ELIGIBILITY FOR REGISTERED ONLINE BIDDERS

- 2.1 The minimum age limit for registered Online Bidders is eighteen (18) years and above, of sound mind and not an undischarged bankrupt;
- 2.2 For companies, be incorporated under the laws of Malaysia and not being wound up or in liquidation;
- 2.3 Registered Online Bidders must have full power and authority to bid and to purchase the property and to perform all necessary actions, conditions and matters (including obtaining any necessary consents) in terms of law to enable registered Online Bidders to participate in the public auction and complete the purchase in the event of successful sale.
- 2.4 Registered Online Bidders eligibility requirements are subject to any restrictions and to any legal provisions of existing Federal and State laws. Foreign nationals or companies are also advised to take note of restrictions applicable on foreign purchase imposed by the relevant authorities.

3. REQUIREMENTS FOR ONLINE BIDDERS

- 3.1 Online Bidders may browse through the VSAC website and select the properties they wish to bid online.
- 3.2 **For Individual/Joint Online Bidders, the following documents shall be uploaded upon online registration:**
 - 3.2.1 Copy of Identity Card (both sides),
 - 3.2.2 Evidence of deposit payment.
- 3.3 **For Agent acting for Individual/Joint Online Bidders, the following documents shall be uploaded upon online registration:**
 - 3.3.1 Copy of Individual/Joint Online Bidder's Identity Card (both sides),
 - 3.3.2 Copy of Agent's Identity Card (both sides),
 - 3.3.3 Copy of letter of authorization to bid,
 - 3.3.4 Evidence of deposit payment.
- 3.4 **For Company, the following documents shall be uploaded upon online registration:**
 - 3.4.1 Copy of the representative Online Bidder's Identity Card (both sides),
 - 3.4.2 Copy of letter of authorization to bid under the Company's Letter Head,
 - 3.4.3 Form 24; Form 44; Form 49 (or its equivalent forms under the Companies Act 2016);
 - 3.4.4 Certified true copy of the company's Memorandum and Articles of Association (M&A),
 - 3.4.5 Board of Director's Resolution,
 - 3.4.6 Evidence of deposit payment.

- 3.5 Online Bidders who is a Foreign Citizen/Foreign Company/Permanent Resident is only allowed to bid for the Property with the prior written consent of the Foreign Investment Committee and/or Economic Planning Unit of Prime Minister Department and/or relevant authorities which shall be uploaded upon online registration. Failing which, Vision Skybidz Auction Centre Sdn Bhd has the sole discretion to reject the registration of Foreign Citizen/Foreign Company/Permanent Resident as registered Online Bidders.

4. REGISTRATION FOR ONLINE BIDDERS

- 4.1 Parties interested to register as an Online Bidders must first sign up as a User by login on to VSAC website.
- 4.2 Online Bidders only need to register once and this registration shall be used to all future auctions on the VSAC website.
- 4.3 Online Bidders are responsible to provide true, current and accurate information upon registration as an Online Bidders.

- 4.4 Online Bidders are required to provide valid and correct e-mail address under Online Bidders' name in the VSAC website and an e-mail registered in the VSAC website ("**registered e-mail**") by the Online Bidders shall be used by Vision Skybidz Auction Centre Sdn Bhd to issue written notification to the Online Bidders pertaining to the public auction.
- 4.5 Online Bidders are required to complete the registration process by submitting the relevant details and uploading the relevant documents required including evidence of payment of the 10% deposit of the fixed reserve price onto the VSAC website **latest by 5pm, at least one (1) working day before the auction date.**
- 4.6 The registration of an individual or company as an Online Bidders on the VSAC website shall not be construed as approval of eligibility of the Online Bidders to conclude the auction sale.
- 4.7 Online Bidders are solely responsible to identify the property correctly and to ensure that all details, liabilities, encumbrances and description of the property are correct and accurate before online bidding.
- 4.8 It is the sole and absolute responsibility of all Online Bidders at their own costs and expenses, to seek and obtain from the Developer and/or the relevant authorities or bodies, all confirmations and/or consents as may be required or as may be applicable in respect of the purchase of the Property and to satisfy themselves on the physical condition of the Property and all matters in connection with the Property prior to the bidding (including and not limited to verifying the identity, particulars, state and condition of the Property and the terms of the conditions and restrictions affecting the Property if any, whether or not the Property is reserved for Bumiputra only or a Malay Reserved property and/or is a low/medium cost property, and matters relating to the ownership and transfer of the Property, the status of the separate document of title to the Property whether has been issued or not and its particulars, if the title of the property has been issued whether the developer is agreeable to a direct transfer of the property in favour of the successful purchaser, the liabilities over the property including the outstanding service or maintenance charges owing to the relevant authorities or the Developer or the management office and other obligations in respect of the Property and the Online Bidders' eligibility and qualification to purchase the Property). Online Bidders shall be deemed to have full knowledge of all of the matters aforesaid. The Assignee/Bank, the Assignee/Bank's Solicitors, the Auctioneer, Vision Skybidz Auction Centre Sdn Bhd and VSAC website and their respective agents or servants do not in any way make any representation or warranty in respect of any of the aforesaid and shall not in any way be responsible or liable to the Online Bidders in respect of any of the aforesaid.

5. **10% (TEN PERCENT) DEPOSIT PAYMENT OF THE FIXED RESERVE PRICE**

- 5.1 Online Bidders must make deposit payment as required under the Conditions of Sale attached to the Proclamation of Sale, i.e. 10% (ten percent) deposit of the reserve price.
- 5.2 Payment of the 10% (ten percent) deposit ("**10% deposit**") must be made via online bank transfer latest by 5 pm, at least one (1) working day before the auction date with the following details:-
- | | | |
|-------------------|---|--|
| Account's Name | : | Vision Skybidz Auction Centre Sdn Bhd |
| Name of bank | : | HONG LEONG BANK BERHAD |
| Bank's account No | : | 365 000 49486 |
| Description | : | BIDDER DEPOSIT |
- 5.3 Online Bidders shall solely be responsible to keep the evidence payment of the 10% deposit paid to claim for the refund in the event of withdrawal bidding or unsuccessful bid.

6. **VERIFICATION OF THE REGISTRATION OF ONLINE BIDDERS**

- 6.1 Registration of Online Bidders shall be subjected to verification and approval by Vision Skybidz Auction Centre Sdn Bhd and subject further to the 10% deposit payment being cleared by the Bank. Approval from Vision Skybidz Auction Centre Sdn Bhd may take at least one (1) working day and any improper, incomplete registration or late registration may be rejected at the sole discretion of the Auctioneer. Vision Skybidz Auction Centre Sdn Bhd, the Auctioneer, VSAC website, its agents and/or representatives shall not be held liable in the event the registration of the Online Bidders is rejected and/or delayed for any reason whatsoever. In the event the registration is rejected, the 10% deposit paid (if cleared by the Bank) shall be refunded by Vision Skybidz Auction Centre Sdn Bhd to the same bank account from which the deposit was made within three (3) working days.
- 6.2 Upon approval and verification by Vision Skybidz Auction Centre Sdn Bhd and subject to the 10% deposit payment being cleared by the Bank, the Online Bidders who successfully registered as registered Online Bidders will receive a **secured hyperlink** via "registered e-mail" which allows the registered Online Bidders to bid online for the property on the auction date.
- 6.3 Registered Online Bidders agrees to comply with all the security precautions related to the usage and protection of the **secured hyperlink** or generally in respect of the use of this service.
- 6.4 Registered Online Bidders is fully responsible to the privacy and confidentiality of the usage of the **secured hyperlink** and not to reveal the **secured hyperlink** to anyone at any time and in the event the **secured hyperlink** is disclosed to any other person at any time and under any circumstances, whether intentionally or unintentionally, the registered Online Bidders shall immediately without delay notify Vision Skybidz Auction Centre Sdn Bhd.

7. **BIDDING RATE**

- 7.1 The Auctioneer shall have discretion to determine the increase of bidding rate based on the total number of Registered Online Bidders and On-site Bidders and value of the property auctioned.
- 7.2 In the event there is only one Registered Online Bidders or On-site Bidders during the auction, the public auction will begin at the property reserve price while if there are more than one Registered Online Bidders and/or On-site Bidders, the public auction will begin at the increment rate which to be determined.

8. **ONLINE BIDDING PROCEDURES**

- 8.1 Any bid once entered by the registered Online Bidders or On-site Bidders shall be binding upon the registered Online Bidders and On-site Bidders and the bid shall not be withdrawn or retracted in any manner whatsoever.
- 8.2 In the event, there is only one (1) or more than one (1) registered Online Bidders and/or On-site Bidders and no bid is entered by the said registered Online Bidders and/or On-site Bidders, the public auction in respect of that particular property shall be aborted.
- 8.3 Online Bidding shall generally commence based on the sequence of the lot of the property being shown on the bidding page in the VSAC website. However, the Auctioneer has the right to vary the sequence of the lot of the property without having to give prior notice to registered Online Bidders.
- 8.4 It shall be the responsibility of all registered Online Bidders to login through the VSAC website **at least 15 (fifteen) minutes before the auction time on the date of auction** and to wait for their turn to bid online for the property lot in which they have registered.
- 8.5 The public auction shall commence after the countdown of 3,2,1 and when a flash message "**Start**". **Raise bid now**" is displayed.
- 8.6 Registered Online Bidders shall start bidding online by pressing the "**Raise BID button**" (for the 1st bid) and the bidding amount stated button for the subsequent bids. Each bid will be called for three (3) times "**First Calling**", "**Second Calling**" and "**Final Calling**". Registered Online Bidders are advised to make their bids early before the calling and not to wait until the "Final Calling".
- 8.7 The information shown in the bidding page of the VSAC website of the new reserve price or increment rate prior to the commencement of the public auction shall be binding on all registered Online Bidders or On-site Bidders.

- 8.8 When the bidding website page displays “**Sold**”, no further bids shall be accepted by the Auctioneer whether Online or On-site and the registered Online Bidders or On-site Bidders with the highest bid shall be declared as the successful Purchaser (“**successful Purchaser**”) upon the fall of the hammer.
- 8.9 The successful and unsuccessful registered Online Bidders shall be notified via registered e-mail or message by Vision Skybidz Auction Centre Sdn Bhd.
- 8.10 Unsuccessful registered Online Bidders shall have the 10% deposit refunded to the same bank account from which the deposit transfer was made within two (2) working days.
- 8.11 In the event of any dispute as to any bid or any dispute arising prior to, during or resulting from the auction sale after the fall of the hammer, the Auctioneer may at his own option forthwith determine the dispute or put up the property for sale again or put the property at the last undisputed bid and/or in the event the public auction is deferred due to technical reasons, clarification, disruption or unforeseen circumstances, the Auctioneer may at his discretion decide to pause, restart, postpone and/or withdraw the property from the public auction and the registered Online Bidders will be notified of this on the bidding page of the VSAC website.
- 8.12 The Assignee/Bank shall be and is hereby at liberty to postpone, adjourn, stand down, call off, withdraw or vacate the auction sale at any time before the fall of hammer with or without notice and without having to provide any reason(s) or ground(s) whatsoever and the registered Online Bidders will be notified on the VSAC website.
- 8.13 The information shown in the bidding page of the VSAC website on the declaration of the successful Purchaser shall be binding on all registered Online Bidders and On-site Bidders.
- 8.14 The decision of the Auctioneer shall be final and conclusive.

9. **POST PUBLIC AUCTION**

- 9.1 The registered Online Bidders who is a Successful Purchaser in the auction sale (“**successful online bidder**”) shall undertake to **sign the Memorandum of Contract** and to pay the differential sum (if any) between the sum equivalent to 10% of the purchase price and the 10% deposit paid under Clause 5.1 above at the office of Vision Skybidz Auction Centre Sdn Bhd **within three (3) working days from the date of auction**, failing which the 10% deposit paid shall be forfeited to the Assignee/Bank and the auction sale shall be deemed cancelled/terminated and the property may be put up for sale again without further notice to the successful online bidder.
- 9.2 The successful online bidder who is unable to sign the Memorandum of Contract at the office of Vision Skybidz Auction Centre Sdn Bhd may do so by authorizing his/her/their agent to execute the same on his/her/their behalf by furnishing the following documents to Vision Skybidz Auction Centre Sdn Bhd
- 9.2.1 A copy of the agent's Identity Card (both sides);
- 9.2.2 A copy of successful online bidder's Identity Card; and
- 9.2.3 A copy of the Letter of Authorization (if individual) or certified true copy of the Board of Director's Resolution (if company) authorizing such person to do so.
- 9.3 In the event if there is inconsistency between the personal details and documents uploaded in the VSAC website and the actual documents produced by the successful online bidder/authorized agent at the office of Vision Skybidz Auction Centre Sdn Bhd, the Auctioneer shall have the right to refuse the successful online bidder/authorized agent from signing the Memorandum of Contract and the Auctioneer may at the Auctioneer's discretion cancel and terminate the sale and the 10% deposit paid shall be forfeited by the Assignee/Bank and the property may be put up for sale again.
- 9.4 The Memorandum of Contract, upon being signed by the successful online bidder /authorized agent, the Auctioneer and Assignee/Bank's Solicitor, shall be conclusive evidence for the sale of the property to the successful online bidder.
- 9.5 An original Memorandum of Contract duly signed and stamped shall be collected by successful online bidder/authorized agent at the office of Vision Skybidz Auction Centre Sdn Bhd within seven (7) days from the notification issued by Vision Skybidz Auction Centre Sdn Bhd through a letter/e-mail/sms/whatsapp. Failing which, an original Memorandum of Contract duly signed and stamped shall be delivered to the successful online bidder by POS LAJU to the address of the successful online bidder provided in the Memorandum of Contract and/or address provided during registration and Vision Skybidz Auction Centre Sdn Bhd shall not in any way be responsible or liable for any cost and expenses or loss arising thereof.
- 9.6 The successful online bidder shall settle the balance purchase price within ninety (90) days from the date of auction sale.

10. **APPLICABLE LAWS AND JURISDICTION**

- 10.1 The usage of VSAC website together with the Online Terms & Conditions stated herein shall be governed by and construed in accordance with the laws of Malaysia
- 10.2 The laws of Malaysia shall regulate and apply to all electronic transactions of immoveable property by public auction. Any legal actions or proceedings arising out of or in connection with the electronic transaction of immoveable property by public auction shall subject to the exclusive jurisdiction of the Courts of Malaysia.

11. **CONFIDENTIALITY OF INFORMATION**

- 11.1 By accessing this VSAC website, all the Online Bidders acknowledge and agree that Vision Skybidz Auction Centre Sdn Bhd and VSAC website may collect, retain, or disclose the Online Bidder's information or any information by the Online Bidders for the effectiveness of services and the collected, retained or disclosed information shall comply with Personal Data Protection Act 2010 and any regulations, laws or rules applicable from time to time.
- 11.2 All Online Bidders agree to accept all relevant risks when using the services in the VSAC website and the Assignee/Bank, the Assignee/Bank's Solicitors and Vision Skybidz Auction Centre Sdn Bhd or their respective servants or agents shall not be liable for any unauthorized access, claim or any consequential loss or damages suffered as a result thereof.

12. **INTELLECTUAL PROPERTY**

- 12.1 Any information, contents, materials, documents, details, graphics, files, data, text, images, digital pictures or any visual being displayed in the VSAC website shall not be used or published either by electronic, mechanical, photocopying, recording or otherwise without the permission from Vision Skybidz Auction Centre Sdn Bhd.
- 12.2 In the event of any infringement of intellectual property rights under the Online Terms & Conditions herein, Vision Skybidz Auction Centre Sdn Bhd may use any available legal remedies which may include the demand for actual or statutory damages, solicitors' fees and injunctive reliefs.

13. **MISCELLANEOUS**

- 13.1 In the event there is any inconsistency, discrepancy, misstatement or error appearing in translations of the particulars and the Online Terms & Conditions to any other language (if any), the Online Terms & Conditions in the English Language version shall prevail.